

24NWCV01851 24NWCV01851

County: los-angeles

Division: Civil Law and Motion

Department: SED

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Case Number: 24NWCV01851 Hearing Date: June 25, 2026 Dept: SED

ISAIAS ROJAS V.

ABNER SCOTT OWENS

CASE NO.: 24NWCV01851

HEARING: 06/25/2026 @

9:30 a.m.

#8

TENTATIVE ORDER

Defendant Abner Scott Owen's unopposed
motion for terminating sanctions against Plaintiff Isaias Rojas is GRANTED.

The Complaint filed by
Plaintiff Isaias Rojas on June 14, 2024 is HEREBY STRICKEN.

The Case is DISMISSED WITH
PREJUDICE.

Moving party to give notice.

Defendant Abner Scott Owen
(Defendant) moves for an order granting terminating sanctions against Plaintiff
Isaias Rojas (Plaintiff).

Defendant also seeks an order

dismissing Plaintiff's complaint with prejudice pursuant to Code of Civil Procedure (CCP) sections 2023.030(d) and 2025.450(h).

Background

This is an action for motor vehicle negligence regarding an accident that occurred on December 11, 2023. On June 14, 2024, Plaintiff filed this action against Defendant and Does 1 to 25, inclusive.

On May 21, 2025, the Court granted Plaintiff's counsel's Motion to be Relieved as Counsel. (5/21/25 Minute Order.) Plaintiff is currently representing himself in pro per.

On October 23, 2025, the Court granted Defendant's motion to compel deposition. The Court ordered the parties to meet and confer to determine the format, date, time, and location of the deposition. The deposition was to take place no later than 30 days from the date of the Court's order. The Court also awarded sanctions in the amount of \$690.00, payable within 60 days.

On January 26, 2026, Defendant filed the instant motion for terminating sanctions against Plaintiff.

No opposition has been filed.

Legal Standard

Where a party willfully disobeys a discovery order, courts have discretion to impose terminating, issue, evidence, or monetary sanctions. (Code Civ. Proc., §§ 2023.010, subd. (g), 2025.450, subd. (h); *R.S. Creative, Inc. v. Creative Cotton, Ltd.* (1999) 75 Cal.App.4th 486, 495.) An evidence sanction prohibits a party that misused the discovery process from introducing evidence on certain designated matters into evidence. (Code Civ. Proc., § 2023.030, subd. (c).) Ultimate discovery sanctions are justified where there is a willful discovery order violation, a history of abuse, and evidence showing that less severe sanctions would not produce compliance with discovery rules. (*Van Sickel v. Gilbert* (2011) 196 Cal.App.4th 1495, 1516.) "[A] penalty as severe as dismissal or default is not authorized where noncompliance with

discovery is caused by an inability to comply rather than willfulness or bad faith." (Brown v. Sup. Ct. (1986) 180 Cal.App.3d 701, 707.) The court may impose a terminating sanction by one of the following orders:

(1) An order striking out the pleadings or parts of the pleadings of any party engaging in the misuse of the discovery process.

(2) An order staying further proceedings by that party until an order for discovery is obeyed.

(3) An order dismissing the action, or any part of the action, of that party.

(4) An order rendering a judgment by default against that party.

(Code Civ. Proc., § 2023.030, subd. (d).)

Analysis

Defendant argues that terminating sanctions are warranted because Plaintiff has disobeyed this Court's December 4, 2025 order compelling his deposition within 20 days and awarding monetary sanctions in the amount of \$690.00. (Motion, p. 3.)

As discussed above, the Court granted Defendant's motion to compel Plaintiff's deposition and ordered the parties to meet and confer regarding the format, date, time, and location of the deposition. (12/4/2025 Minute Order.) The deposition was to take place no later than 30 days from the date of the Court's order. (Ibid.) The Court also awarded monetary sanctions in the amount of \$690.00, payable within 60 days. (Ibid.) Plaintiff was served with notice of the order that same day. (12/4/2025 Notice of Ruling.)

On December 5, 2025, Defendant served a Fifth Notice of Continuance of Plaintiff's deposition, scheduling the

deposition for December 23, 2025, at 10:00 a.m. via Zoom. (Migoya Decl., ¶ 3, Ex. B.) Plaintiff failed to appear for the scheduled

deposition, and Defendant thereafter obtained a certificate of nonappearance. (Id. at ¶ 4, Ex. C.) Defendant's counsel further states that, to

date, Plaintiff has not paid the court-ordered sanctions. (Id. at ¶ 5.)

Notably, Plaintiff was served

with the instant motion by regular mail at his last known address but has not

filed an opposition. Indeed, Plaintiff

has not appeared in this action since his former counsel was relieved, and the

record suggests that he is no longer interested in prosecuting this matter. Under these circumstances, the Court finds

that striking the Complaint is appropriate. Although terminating sanctions are a severe

remedy, the record demonstrates that Plaintiff has failed to comply with the

Court's orders and that compliance cannot reasonably be achieved through lesser

sanctions.

Conclusion

Based on

the foregoing, Defendant Abner Scott Owen's unopposed motion for terminating

sanctions against Plaintiff Isaias Rojas is GRANTED.

The

Complaint filed by Plaintiff Isaias Rojas on June 14, 2024 is HEREBY STRICKEN.

The case

is DISMISSED WITH PREJUDICE.